ISO 37008

Checklist

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In 2023, the International Organization for Standardization (ISO) issued its ISO 37008 guidelines on internal investigations. ISO 37008 provides organisations with guidance on how to create an investigations programme to prevent, detect and manage reports related to potential misconduct or non-compliance. In recent years, ISO has released multiple standards aimed at guiding organisations in developing, measuring and reporting on key aspects of their compliance programmes such as ISO 37001 (anti-bribery) and ISO 37301 (compliance), which ISO 37008 complements.

In this checklist, we provide suggestions on how to develop and align an investigations process based on guidance proposed by ISO 37008.

Step 1:

Understand the principles behind a strong investigations process and determine whether your existing protocols reflect these principles

These principles include:

- **independence** – the investigations team should act without personal preference or connection to the subject(s) of the investigation
- **confidentiality** – the investigation should be conducted privately between the investigations team, subject, reporter and any individuals who should be aware of its status
- **competence** – investigators should have the knowledge, skill and resources required to effectively manage the investigation
- **objectivity and impartiality** – investigators should conduct their process for the sole purpose of determining the facts
- **legality** – investigators should be aware of any laws that apply, inform subjects of their duty to cooperate, refrain from harassment and manage evidence properly.

Step 2:

Gather and consolidate support for the investigations programme

The governing body and top management should provide support for the investigations programme. This includes:

- personnel who can competently manage investigations
- financial resources
- organisational resources, such as devices, software, phones and other tangible resources
- commitment based on the investigations principles outlined in Step 1.

Step 3:

Establish an investigations policy

An investigations policy should:

- explain how to carry out the investigations process
- clearly identify the reporting hotline or 'speak-up' process
- reflect the investigations principles outlined in Step 1
- include procedures to stop any unlawful action that may be taking place
- outline a process to document investigation notes, findings and results
- set out how results will be reported.

Step 4:

Implement safety and protection measures

These measures should:

- include procedures to store and manage evidence securely, such as:
  - locations to hold evidence
  - methods to confirm the status of any involved parties to ensure the organisation has access to them during the investigation
  - policies to prevent tampering with witnesses
  - protocols to prevent mismanagement, damage or other negative actions to evidence
- include protections for personnel associated with an investigation, such as:
  - carrying out interviews with integrity and privacy
  - keeping information from personnel confidential
- promise and ensure anti-retaliation.

Step 5:

Set up and execute on your investigations process

This should include:

- the appointment of an investigations team
- an investigations reporting line to keep necessary parties up to date and to request support, resources or other tools as needed

- a documented preliminary assessment to determine the seriousness and credibility of the report
- if the report is serious and requires a full investigation, developing an investigations plan
- a notice regarding confidentiality to the reporter and all essential stakeholders
- strategies for accessing electronic data safely and without risk to the integrity of the investigation
- conducting interviews using appropriate interview techniques and securely documenting the interview results
- concluding the investigations process once the team can:
  - make findings and decisions based on evidence
  - implement remedial or corrective actions
  - document findings and decisions within a written report.

Step 6:

Communicate next steps

This should involve:

- planning communication to relevant stakeholders based on findings of the investigation, with minimal impact on operations
- checking with the right departments and legal team to prepare disclosures and notices on impacts to business operations
- implementing disciplinary action if required.

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